FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

U.S. BANK TRUST NATIONAL ASSOCIATION NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR RCF 2 ACQUISITION TRUST

Plaintiff,

Index No. 130233/2013

-against-

ERLING GARPESTAD, CHRISTOPHER GARPESTAD, GUNNAR GARPESTAD AS HEIR AND DISTRIBUTEE TO THE ESTATE OF THOMAS GARPESTAD, THE PUBLIC ADMINISTRATOR RICHMOND COUNTY AS ADMINISTRATOR OF THE ESTATE OF THOMAS GARPESTAD, CITY OF NEW YORK ENVIRONMENTAL CONTROL BOARD, AMERICAN EXPRESS CENTURION BANK, WORKERS COMPENSATION BOARD OF NEW YORK STATE, COMMISSIONER OF LABOR STATE OF NEW YORK, NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE, UNITED STATES OF AMERICA (EASTERN DISTRICT), DELFINA MONTALVO, OMAR ROSARIO, JOSE LOPEZ, ADAM LOPEZ-PEREZ,

Defendant.

MORTGAGED PROPERTY:144 WRIGHT ST STATEN ISLAND, NY 10304
COUNTY: Richmond

BL #: 518-51
Sale Date: February 19, 2026 at 10:00 AM

A. **To be completed by the Referee**

1. Final Judgment Amount per Judgment: $793,593.65
2. Adjusted Judgment Amount (Upset Price): $ 651,407.28
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 652,000-
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ TBD

***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $_____

Referee Name: James H. Birch Esq Telephone: 718.442.1295
Address: 1189 Forest Avenue, Staten Island, N.Y. 10310
Email: jbirch@ssfloyal.com Signature/Date: 2/19/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Terence Gee
Address: 144-36 78th Ave. Flushing, N.Y. 11367
Telephone: 917.324.2033
Email Address:
Signature and Date: 7.19.26

C. To be completed by Purchaser

Name: CITY VIEW HOMES CORP
Address: 495 FLOWDIKE AVE SI NY 10314
Telephone: 347-768-3000
Email Address: khi2wi@aol.com
Signature and Date: 2/19/26